

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
RAMOTH GABBIDON,

Plaintiff designates
Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose

-against-

CITY OF NEW YORK, individually and officially in their
capacities as New York City Police Officers, MICHAEL
SOTO, and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 15, 2019



SIM & DEPAOLA, LLP

BY: Markus A. Wilson, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

**POLICE OFFICER MICHAEL SOTO
48TH NYPD PRECINCT**

450 Cross Bronx Expressway

Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RAMOTH GABBIDON,

X

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, individually and officially in their
capacities as New York City Police Officers, MICHAEL
SOTO, and JOHN or JANE DOE 1-10,

Defendants.

X

Plaintiff, RAMOTH GABBIDON, by his attorneys, Sim & DePaola, LLP, for his
complaint against the above Defendants, alleges as follows:

1. The claim arises from an August 8, 2016 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. The Plaintiff was arrested for allegedly Reckless Endangerment in the Second Degree (P.L. 120.20.) and subsequently charged with Vehicle Traffic Violations for Reckless Driving (V.T.L, 1212) and Leaving the Scene of an Accident without Reporting (V.T.L. 600(1)(a)). As a result, Mr. Gabbidon was deprived of his liberty and suffered physical and psychological injuries. Mr. Gabbidon was wrongfully detained for approximately seven (7) hours and released with a Desk Appearance Ticket. He was unlawfully maliciously prosecuted on this matter until the Bronx Assistant District Attorney Jena Rizzo declined to prosecute said criminal charges on March 14, 2018 and dismissed all charges.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff RAMOTH GABBIDON ("Mr. Gabbidon") resides at 153 East 165th Street, Apartment 6A, Bronx County, State of New York.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including corrections officers, investigators, detectives and/or supervisory officers, as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Michael Soto ("Soto") was, at all times here relevant, a police officer employed by the NYPD, and as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Soto was, at the times relevant herein, a New York City Police Officer under Shield No. 7250, and Tax No. 952259 and assigned to the 48th NYPD Precinct, located at 450 Cross Bronx Expressway,

Bronx, New York. Defendant Soto is being sued in his individual and official capacities.

8. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, investigators, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names, shield numbers, and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.
9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and/or the NYPD.

Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller. An Amended Notice of Claim was sent on August 24, 2018 to correct a typographical error of hours in custody from three (3) to seven (7) hours.
12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On or about August 8, 2016, at approximately 5:30 p.m., Mr. Gabbidon was in the vicinity of the intersection of East Tremont Avenue and Anthony Avenue, Bronx, New York.

16. At said date, time, and location, Mr. Gabbidon was driving his wife's motor vehicle.

17. Plaintiff was on his way to pick up his wife at work.

18. Mr. Gabbidon drove past a NYPD police vehicle.

19. After Mr. Gabbidon drove past the NYPD police vehicle, he was immediately pursued by multiple NYPD police officers.

20. Mr. Gabbidon did not know that the police vehicles were pursuing him. Mr.

Gabbidon immediately pulled over to yield to the police vehicles when he observed the NYPD vehicles engage their lights and sirens so that the NYPD vehicles could continue to pass him.

21. Defendants' police vehicles, including Soto's police vehicle, approached Mr.

Gabbidon's vehicle and surrounded Mr. Gabbidon's vehicle.

22. Mr. Gabbidon had not committed any crimes or violations of the law.

23. Defendants, including Soto, illegally stopped plaintiff's vehicle without probable cause or any other lawful reason to do so.

24. Mr. Gabbidon rolled down his window to inquire what was happening and he heard NYPD officers yelling at him to "Get the fuck out of the car!"

25. Mr. Gabbidon immediately complied with the officers' orders and exited the vehicle.
26. Mr. Gabbidon was then approached by at least five (5) NYPD officers who grabbed him and threw violently to the ground. Defendants, including Soto, committed multiple assault and batteries to plaintiff's person. Three (3) of said officers then put their knees onto plaintiff's back with excessive force.
27. Defendants, by an officer JOHN /JANE DOE, whose identity is unknown at this time, pressed Mr. Gabbidon's head onto the floor.
28. Defendants, by an officer JOHN/JANE DOE, whose identity is unknown at this time, also told plaintiff "you are lucky so many people were around," causing him great alarm and fear. The officers were intimating that they would have used more excessive force if bystanders weren't present to observe their actions.
29. Mr. Gabbidon asked the officers why he was being arrested and one officer replied "shut the fuck up."
30. Defendants, including Soto, never possessed a valid arrest warrant authorizing the arrest of Mr. Gabbidon.
31. Defendants, including Soto, never possessed probable cause to arrest Mr. Gabbidon, as he did not commit any crimes or violations of the law, including being involved in a hit and run accident.
32. Defendants, including Soto, falsely reported that he personally observed Mr. Gabbidon drive recklessly and leave the scene of an accident, when he knew said allegation to be untrue.
33. Defendants, including Soto, never observed Mr. Gabbidon commit any crime or violation of the law.

34. Mr. Gabbidon was then illegally searched, seized and illegally placed in handcuffs.
35. Mr. Gabbidon was then transported to an NYPD precinct, which plaintiff believes to be the 48th NYPD Precinct.
36. Mr. Soto was held unlawfully for seven (7) hours until he was released with a Desk Appearance Ticket.
37. Defendants, including Soto, had no probable cause or reasonable suspicion to arrest Mr. Gabiddon, as Mr. Gabbidon had not committed any crime or violation of the law.
38. Defendants, including Soto, falsely alleged that Mr. Gabbidon was observed committing crimes or violations of the law.
39. Defendant Soto signed the Desk Appearance Ticket against Mr. Gabbidon that falsely alleged that Mr. Gabbidon committed the abovementioned crimes and violations of the law.
40. As a result of defendant Soto knowingly and intentionally provided false statements and allegations, Mr. Gabbidon was falsely arrested under Arrest Number B16644804.
41. Mr. Gabbidon was fingerprinted and photographed by defendants.
42. While Plaintiff was unlawfully detained, Defendants, including Soto, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for reckless driving and other related charges.
43. Defendants, including Soto, committed perjury by knowingly offering false statements contained within the Mr. Gabbidon's desk appearance ticket as true and signing and attesting to the truth of allegations they knew to be false.

44. Defendants, including Soto, arrested and caused a criminal prosecution to be initiated against Mr. Gabbidon.
45. Defendants have displayed a pattern and practice of falsely arresting individuals who commits no crimes or violations of the law, such as Mr. Gabbidon.
46. During all of the events described, the Defendants, including Soto, acted maliciously and with intent to injure Plaintiff.
47. Defendants, including Soto, were fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Gabbidon, because the Defendants knew that Mr. Gabbidon was never driving recklessly or left the scene of an accident.
48. At all times relevant hereto, Defendants, including Soto, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
49. The criminal prosecution against Mr. Gabbidon terminated in his favor when all charges were dismissed on March 14, 2018 when Bronx Assistant District Attorney Jena Rizzo declined to prosecute the matter.
50. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
51. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
52. The instant arrest of Plaintiffs' without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision

makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

53. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
54. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD officers and/or investigators and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Gabbidon.
55. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

56. The above paragraphs are here incorporated by reference as though fully set forth.

57. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
58. Plaintiff was conscious of his confinement.
59. Plaintiff did not consent to his confinement.
60. Plaintiff's arrest and false imprisonment was not otherwise privileged.
61. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
62. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
63. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

64. The above paragraphs are here incorporated by reference as though fully set forth.
65. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
66. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
67. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

69. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

70. The above paragraphs are here incorporated by reference as though fully set forth.

71. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

72. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

73. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth.

77. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

78. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
79. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
80. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. Defendants initiated the prosecution against Plaintiff.
83. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
84. Defendants acted with malice.
85. The prosecution was terminated in Plaintiff's favor when the criminal charges were dismissed and sealed.
86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
87. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.
90. Defendants initiated the prosecution against Plaintiff.
91. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
92. Defendants acted with malice.
93. The prosecution was terminated in Plaintiff's favor when all charges were dismissed and sealed.
94. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
99. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
100. Defendants intended to inflict substantial harm upon Plaintiff.

101. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
102. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under

42 U.S.C. § 1983 Against Individual Defendants

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
107. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
108. Defendants intended to inflict substantial harm upon Plaintiff.
109. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
110. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

113. The above paragraphs are here incorporated by reference as though fully set forth.
114. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

120. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

123. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

124. The above paragraphs are here incorporated by reference as though fully set forth.

125. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

126. Defendant City breached that duty of care.

127. Defendant City placed defendants in a position where they could inflict foreseeable harm.

128. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

129. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

131. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

132. The above paragraphs are here incorporated by reference as though fully set forth.

133. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

134. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

135. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.

136. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.

137. Defendant City’s conduct violated Plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

139. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

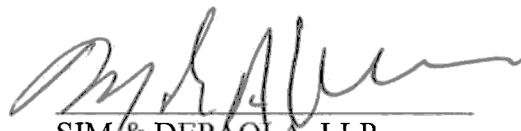
- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
May 15, 2019

A handwritten signature in dark ink, appearing to read 'Markus A. Wilson', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Markus A. Wilson, Esq.

Attorneys for Plaintiff

4240 Bell Blvd., Suite 201

Bayside, NY 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Markus A. Wilson**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff regarding the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is not signed by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 15, 2019



MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RAMOTH GABBIDON,

Plaintiff,

-against-

CITY OF NEW YORK, individually and officially in their capacities as New York City Police
Officers, MICHAEL SOTO, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: MARKUS A. WILSON
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for